

LEGAL OPINION OF THE LEGAL COMMISSION OF THE EUROPEAN FENCING CONFEDERATION

To: The Executive Committee of the European Fencing Confederation (the "Comex")
From: The Legal Commission of the European Fencing Confederation
Date: DRAFT
Subject: Validity and Legal Effect of the Proposed Resolution Submitted by the Türkiye Fencing Federation, the Bulgarian Fencing Federation and the Serbian Fencing Federation (the "Proposing Federations") for Inclusion on the Agenda of the 2026 Ordinary Congress: Recommended Course of Action

Status: Confidential

I. EXECUTIVE SUMMARY

1. EXECUTIVE SUMMARY

- 1.1. The Legal Commission has been asked to advise the Comex on the legal validity of the proposed resolution submitted by the Türkiye Fencing Federation (the "Turkish Proposal") for consideration at the 2026 Ordinary Congress of the EFC to be held in Antony, France. The Serbian and Bulgarian Fencing Federations have submitted word-for-word identical resolutions (together with the Turkish Proposal, the "Proposals").
- 1.2. Having considered the Proposals against the EFC Statutes (June 2025 version, hereinafter the "Statutes"), the EFC Internal Rules (June 2025 version, hereinafter the "Internal Rules"), the EFC Administrative Rules and the applicable provisions of the Luxembourg Law of 7 August 2023 on non-profit associations and foundations (the "2023 Law"), the Legal Commission sets out below its principal conclusions.
- 1.3. The Proposals:
 - (a) satisfy the mandatory agenda inclusion threshold under the 2023 Law and must be placed on the Congress agenda;
 - (b) are, however, procedurally and substantively misconceived in material respects, as they seek to exercise a power, lifting a suspension under Article 4.11.6 of the Statutes, which is no longer available in respect of the Russian Fencing Federation and the Belarusian Fencing Federation given that both have lost their membership entirely under Article 2.13.3 of the Statutes;
 - (c) cannot, in any event, be validly implemented while the Russian Fencing Federation has outstanding financial obligations to the EFC regarding fees in relation with an outstanding Court of Arbitration for Sport ("CAS") award, which engage Article 1.21 of the Statutes;
 - (d) may require an amendment to Article 1.28 of the Internal Rules to accommodate AIN-status participation at EFC Championships, which amendment must appear on the Congress agenda in its final definitive form pursuant to Article 7.3 of the Internal Rules;
 - (e) raise a broader concern regarding the coordination of identical submissions, which the Comex should investigate; and
 - (f) should be addressed at Congress only after the Comex has first established and disclosed the membership status of the Russian and Belarusian Fencing Federations and the full quantified schedule of their financial obligations to the EFC.

- 1.4. The Legal Commission recommends that the Comex take the actions set out in Part VIII of this Opinion before circulating the final Congress agenda and documentation under Article 4.25 of the Statutes.

II. BACKGROUND

2. BACKGROUND

- 2.1. The Proposals: At the Extraordinary Congress in June 2023, the EFC passed resolutions (the "2023 Resolutions") which:

- (a) suspended the Russian Fencing Federation ("RUS") and the Belarusian Fencing Federation ("BLR") as Member Federations of the EFC; and
- (b) prohibited athletes, coaches, referees, and officials holding Russian or Belarusian citizenship and licences from participating in EFC competitions.

The Proposals, submitted pursuant to Article 4.24 of the Statutes, seek to repeal the 2023 Resolutions in their entirety and to reinstate RUS and BLR as full Member Federations with immediate effect, subject to financial and ethical compliance. The Proposals also seek to allow AIN-status participants in all EFC events and to allow RUS/BLR athletes to participate in cadet and junior events under their national identity.

- 2.2. Identical submissions: The Legal Commission notes that three federations (the Türkiye Fencing Federation, the Bulgarian Fencing Federation and the Serbian Fencing Federation) (together, the "Proposing Federations") — have submitted word-for-word identical resolutions within the meaning of Article 4.24 of the Statutes. The Statutes and Internal Rules are silent on the procedural treatment of identical co-submissions. The Legal Commission addresses this point in Part IV below.

- 2.3. Applicable law: The EFC is registered as an *association sans but lucratif* ("ASBL") under Luxembourg law. The transitional period under the 2023 Law expired on 23 September 2025. Accordingly, as of the date of this Opinion, the EFC is fully subject to the 2023 Law, and any provisions of the Statutes that conflict with the 2023 Law are deemed unwritten by operation of law.

- 2.4. Additional documentary evidence: The Legal Commission has reviewed two further documents material to this Opinion:

- (a) a letter from the EFC Secretary General to the President of the Russian Fencing Federation dated 24 August 2023, in which the EFC formally reminded RUS that its suspension did not discharge it from paying membership fees, set a final extended payment deadline of 8 September 2023, and gave formal notice that failure to pay by that deadline would cause RUS to be deemed to have resigned by operation of Luxembourg law then in force; and
- (b) a letter from the EFC Treasurer to the President of the Russian Fencing Federation, delivered by hand in Sharm El Sheikh on 17 November 2023, together with the underlying CAS invoice and the CAS Court Office costs letter of 9 October 2023, establishing that:
 - (i) CAS case 2022/A/8812 (*Russian Fencing Federation et al. v. European Fencing Confederation*) resulted in an award dated 25 November 2022 in which all arbitration costs of CHF 21,573 were ordered to be borne in their entirety by RUS et al.;
 - (ii) the net amount owed by RUS to the EFC after deduction of advances was CHF 8,573, due within 30 days of the CAS Court Office letter of 9 October 2023; and
 - (iii) as at the date of the Treasurer's letter, the invoice was overdue and no payment had been received.

Notably, it was RUS that initiated those CAS proceedings as appellant. The significance of these documents for the analysis in Parts IV and V below is addressed in those Parts respectively.

2.5. Observations on the EFC-RUS correspondence: The correspondence documented in clause 2.4 above is of wider significance than the factual matters it establishes, and the Legal Commission draws the following observations from it, each of which is material to the analysis in the Parts that follow:

- (a) Russia was already in fee default before the suspension was imposed. The Secretary General's letter of 24 August 2023 states that the annual membership fee was due by 31 March 2023. The Extraordinary Congress that imposed the suspension of RUS did not take place until June 2023, three months after the fee fell due. Russia was therefore already in breach of its financial obligations to the EFC before the 2023 Resolutions were passed. The subsequent suspension neither caused nor excused that default;
- (b) Russia immediately sought informal reinstatement through the Comex. Within approximately two months of the suspension, Russia had already approached the Comex seeking to have the suspension reversed. The Secretary General correctly confirmed in writing that the Comex is not empowered to reverse a decision of Congress, consistent with Articles 4.1, 4.12 and 4.13 of the Statutes. Russia has therefore been aware since at least August 2023 that only Congress can restore its membership status. The emergence of three identical proposals submitted by other Member Federations for the 2026 Ordinary Congress, each seeking precisely the Congress action Russia has known it requires, falls to be read in the light of that knowledge, and reinforces the concern regarding coordination addressed in clause 3.4 of this Opinion;
- (c) The EFC acted in good faith. By granting an exceptional extended deadline of 8 September 2023, well beyond the original 31 March 2023 deadline, the EFC gave Russia a further five months to remedy its financial default. The payment of membership fees was explicitly stated to be a requirement of RUS regardless of its suspended status. Russia received formal written notice of the consequence of non-payment (deemed resignation under Luxembourg law) before the deadline expired. Any argument by Russia that the deemed resignation operated without adequate notice or a reasonable opportunity to comply is, on the face of the correspondence, not sustainable;
- (d) Russia itself initiated the CAS proceedings. The CAS proceedings referenced in clause 2.4(b) above (CAS 2022/A/8812) were brought by the Russian Fencing Federation as appellant against the EFC. Russia chose to invoke the CAS arbitration framework against the EFC, accepted CAS as the competent tribunal, participated in the proceedings, and lost. It was then ordered to bear all arbitration costs. Russia's subsequent failure to pay those costs in proceedings it itself initiated, under a framework it voluntarily invoked, makes any challenge to the validity or legitimacy of the award particularly difficult to sustain; and
- (e) The correspondence reveals a pattern of non-compliance. Across three separate financial obligations (the 2023 membership fee (due 31 March 2023), the extended fee deadline (8 September 2023), and the CAS costs award (due 13 November 2023)) Russia received formal notice in each case and failed to comply. The Treasurer's delivery of the CAS demand by hand in person to the President of RUS in Sharm El Sheikh on 17 November 2023 forecloses any argument of non-receipt. This consistent pattern of non-compliance with documented financial obligations is directly relevant to the assessment of the Proposals and Congress's consideration of whether reinstatement, which the Proposals themselves acknowledge is conditional on financial compliance, is appropriate in current circumstances.

III. PROCEDURAL VALIDITY OF THE PROPOSALS

3. PROCEDURAL VALIDITY OF THE PROPOSALS

- 3.1. Compliance with Article 4.24 of the Statutes: Article 4.24 of the Statutes requires that proposals from Member Federations for the Ordinary Congress be submitted in writing to the Secretary General no later than 2359 on the day two months before the opening of the Congress, with proof

of delivery in a form acceptable to the Comex. The Comex has verified that the Proposals were submitted in compliance with this deadline, having been received before the prescribed two-month cut-off. As the deadline has been met, the standard simple majority threshold under Article 4.8 of the Statutes applies to any resulting resolutions; the three-quarters qualified majority prescribed by Article 4.26 for late submissions does not arise.

- 3.2. Mandatory agenda inclusion under the 2023 Law: Independently of the EFC's own two-month deadline, Article 7 of the 2023 Law provides that any proposal signed by at least one-twentieth (1/20) of all members must be included on the agenda of the general assembly. With approximately 50 Member Federations in the EFC, the threshold of 1/20 equates to approximately 2–3 federations. Three Member Federations having submitted identical proposals clearly satisfies this threshold. The Legal Commission advises that the Comex is legally obliged under the 2023 Law to include the substance of the Proposals on the Congress agenda regardless of whether the EFC's internal two-month deadline has been met. The EFC's internal procedural rules cannot lawfully override the mandatory statutory right of 1/20 of members to have their proposals considered. Accordingly, any exclusion of the Proposals from the agenda on procedural grounds alone would expose the EFC to challenge under Luxembourg law.
- 3.3. Treatment of identical submissions: The Statutes contain no provision for the treatment of multiple identical proposals. The Legal Commission advises that the Comex exercise its residual governance power under Article 7.4 of the Internal Rules to direct that the three identical submissions be treated as a single co-sponsored proposal presented by three Member Federations jointly. This avoids the awkward position of holding three separate votes on substantively identical resolutions and consolidates the debate. The co-sponsors retain their individual speaking rights under Article 2.14 of the Internal Rules; however, the Comex may direct that a single introduction is made on behalf of all three co-sponsors to maintain orderly proceedings, with the express agreement of the proposing federations. The Comex will notify the Proposing Federations of this determination before the Congress agenda is finalised; their consent is not required, as the Comex is acting within its residual governance authority under Article 7.4 of the Internal Rules.
- 3.4. Concern regarding coordination: The Legal Commission draws the Comex's attention to the fact that the Türkiye Fencing Federation, the Bulgarian Fencing Federation and the Serbian Fencing Federation have independently submitted word-for-word identical proposals, which strongly suggests that the text was produced or circulated from a common source. The Legal Commission recommends that the Comex investigate the origin of the proposals prior to the Congress. In particular, the Comex should seek to establish whether RUS, BLR, or any person associated with those federations (including, in particular, whether the Proposing Federations received assistance in drafting the Proposals from any person affiliated with RUS or BLR) was involved in drafting or coordinating the submission. If RUS or BLR have lost their membership status under Article 2.13.3 of the Statutes (see Part V below), any involvement in coordinating proposals for the Congress through the mechanism of other Member Federations would be irregular and contrary to the spirit of the Statutes, even if not expressly prohibited.

IV. THE SUBSTANTIVE MISCONCEPTION AT THE HEART OF THE PROPOSALS

4. THE SUBSTANTIVE MISCONCEPTION AT THE HEART OF THE PROPOSALS

- 4.1. The Proposals are framed as seeking to "lift the suspension of membership" of RUS and BLR pursuant to Article 4.11.6 of the Statutes. The Legal Commission advises that this framing is legally misconceived in the following respects.
- 4.2. The distinction between suspension and loss of membership: Article 4.11.6 gives Congress exclusive competence over the "temporary suspension of a Member Federation." Lifting a suspension presupposes an existing (if curtailed) membership. However, Article 2.13 of the Statutes provides that a Member Federation may lose its membership by three distinct routes:
 - (a) resignation;
 - (b) expulsion by absolute majority of a Congress vote; or

- (c) "failure to comply with the requirements of the present Statutes concerning monies due or owed to the EFC."

The Legal Commission's analysis of the financial position of RUS, addressed in Part V below, leads it to the preliminary conclusion that RUS may already have lost its membership under Article 2.13.3, independently of the 2023 Resolutions. If that is correct, there is no "suspended membership" remaining to lift. Congress's power under Article 4.11.6 cannot be exercised in respect of a federation that is no longer a member at all.

- 4.3. The correct mechanism for re-admission: If RUS has lost its membership under Article 2.13.3, the correct legal route is re-admission as a new Member Federation under Articles 4.11.5, 2.7, 2.8 and 2.9 of the Statutes. This requires RUS to submit a fresh application to the Comex accompanied by a declaration from the Russian National Olympic Committee certifying that RUS is the sole officially recognised fencing body and an FIE Member Federation. The Comex may provisionally accept such an application under Article 2.9, with Congress making the final determination at its first meeting after receipt of a valid application under Article 2.8. A resolution in the terms proposed by the Proposals, which purports to "reinstate" membership with immediate effect without triggering this process, would not be the legally correct mechanism if RUS has ceased to be a member.
- 4.4. The same analysis applies to BLR: The same analytical framework applies.

V. THE FINANCIAL OBLIGATIONS OF RUS AND BLR

5. THE FINANCIAL OBLIGATIONS OF RUS AND BLR

- 5.1. Membership fee arrears: Article 1.17 of the Statutes requires all Member Federations to pay an annual membership fee not exceeding EUR 2,000 by 31 January of the year it falls due, with a 20% surcharge automatically applicable for late payment. The Statutes do not provide any exemption from the fee obligation for suspended Member Federations. Articles 4.2 and 5.2.3 of the Statutes consistently refer to federations being "fully paid-up and unsuspended" as two independent conditions, confirming that a suspended federation remains obligated to pay membership fees. If RUS and BLR have not paid their annual membership fees since their suspension in June 2023, they will have accumulated arrears, together with the applicable 20% surcharge on each year's overdue payment since entry into force of this modification in June 2025. The Comex Treasurer must confirm the exact position before the final Congress documentation is circulated.
- 5.2. Membership fee arrears and formal notice of deemed resignation: Article 1.17 of the Statutes requires all Member Federations to pay an annual membership fee not exceeding EUR 2,000 by 31 January of the year it falls due, with a 20% surcharge automatically applicable for late payment. The Statutes do not provide any exemption from the fee obligation for suspended Member Federations. This position is not merely an inference from the Statutes: by letter dated 24 August 2023 (as described in clause 2.4(a) above), the EFC Secretary General formally and explicitly notified the President of RUS in writing that "the suspension of your Member Federation does not discharge you from paying your Membership fees." That letter further granted an exceptional extended deadline of 8 September 2023 and gave formal notice in the following terms: "A failure to pay by the designated deadline will cause your Federation to be deemed to have resigned as a consequence of Luxembourg law of associations and foundations applicable to the EFC Statutes." That formal notice was given while the Law of 21 April 1928 on non-profit associations was still the applicable Luxembourg law; the Law of 7 August 2023 did not enter into force until 23 September 2023, which is after the 8 September 2023 deadline.

Subject to confirmation by the Treasurer that no payment was received by 8 September 2023, the available documentary evidence strongly supports the conclusion that RUS has been deemed to have resigned since that date. The same analysis should be applied to BLR, whose payment position the Treasurer should likewise verify.

- 5.3. The outstanding CAS award: Article 11.4 of the Statutes provides that the EFC recognises the CAS as the final authority in any conflict. The relevant CAS proceedings are as described in clause 2.4(b) above. It is significant that RUS was the appellant in those proceedings. RUS itself initiated

the CAS case against the EFC in 2022 and lost. The CAS Award was rendered on 25 November 2022 and determined that all arbitration costs of CHF 21,573 were to be borne in their entirety by RUS et al. By letter of 9 October 2023, the CAS Court Office fixed the net amount owed by RUS to the EFC at CHF 8,573, due within 30 days, i.e. by 13 November 2023. The EFC invoiced RUS on 26 October 2023. By 17 November 2023, when the EFC Treasurer delivered the formal demand by hand in person to the President of RUS in Sharm El Sheikh, the invoice was already overdue, and no payment had been received. There is no evidence before the Legal Commission that payment has since been made. RUS, having itself initiated the CAS proceedings, cannot plead lack of notice of its obligations under the CAS framework or dispute the validity of the award. Non-payment of the CAS award represents a failure to comply with the binding determination of the body that the EFC has expressly recognised as its final governance authority under Article 11.4. The Legal Commission further notes that the CAS costs order was made jointly against RUS and three named individual co-appellants, Ms Sofya Velikaya, Mr Dmitry Zhrebchenko and Mr Artur Akhmatkhuzin. The liability for the costs is joint; however, for the purposes of the EFC's governance analysis, it is the obligation of RUS as the Member Federation entity that is material to the membership and re-admission analysis. The Treasurer should confirm whether any payment has been received from any of the named parties and whether the full sum remains outstanding.

- 5.4. Effect of Article 1.21: Whether or not RUS retains a residual membership status, Article 1.21 of the Statutes is a direct and unqualified bar. A federation with a debt to the EFC is not entitled to vote or attend a Congress. If RUS were to be readmitted by a Congress resolution, it could not exercise any voting rights or attend Congress while the fee arrears and the CAS award remain unsatisfied. A resolution purporting to grant full membership rights to RUS while outstanding debts remain would be internally inconsistent with Article 1.21 and could be challenged.
- 5.5. Implications for the Proposals: The Proposals themselves acknowledge that reinstatement is conditional upon "compliance with the financial and ethical obligations set forth in the EFC Statutes." This concession by the proposing federations is significant: it confirms that financial compliance is a prerequisite for reinstatement and that Congress should not pass a reinstatement resolution until the financial position has been verified and satisfied. The Comex should ensure that the pre-Congress documentation sets out the full schedule of debts owed by RUS and BLR so that delegates are fully informed at the time of voting.

VI. THE AIN PARTICIPATION AND INTERNAL RULES ISSUE

6. THE AIN PARTICIPATION AND INTERNAL RULES ISSUE

- 6.1. The Proposals seek to allow athletes granted AIN (Authorised Individual Neutral) status by the FIE to participate in all EFC events. This element of the Proposals is procedurally and substantively distinct from the federation membership question and can in principle be addressed by Congress independently of the RUS/BLR membership status question.
- 6.2. Conflict with Article 1.28 of the Internal Rules: Article 1.28 of the Internal Rules provides that "for official competitions of the EFC, fencers must be of the nationality of the country they are representing." AIN participation under which athletes compete under a neutral flag with no national identity is directly inconsistent with Article 1.28. If Congress were to pass a resolution permitting AIN-status participation at EFC events without simultaneously amending Article 1.28, a direct conflict would exist between the Congress resolution and the Internal Rules. That conflict could be exploited to challenge the validity of individual event results.

The Legal Commission notes, however, that there is a principled basis upon which a suitable drafted Congress resolution may achieve the same practical result without requiring a formal amendment to Article 1.28. Article 1.28 regulates the position of fencers competing under a country's nationality. AIN participation, under which athletes compete under a neutral designation without representing any country, is arguably a situation not addressed by Article 1.28 at all. The provision speaks to athletes representing a country, not athletes competing outside any national framework. On this analysis, AIN participation falls within a gap in the Internal Rules rather than in direct conflict with an existing provision.

A gap is a matter not covered by the Internal Rules within the meaning of Article 7.4, which gives the Executive Committee residual authority over such matters and which Congress may address through a participation resolution under its general plenary authority as the supreme decision-making body under Article 4.1.

Furthermore, a specifically drafted Congress resolution permitting AIN participation operates as *lex specialis*: as a more specific and more recent expression of Congress will, it takes precedence on ordinary principles of interpretation over the general nationality rule in Article 1.28.

6.3. Two routes to achieving AIN participation: The Legal Commission identifies two legally available routes for Congress to give effect to AIN participation at EFC events.

- (a) Route A: Formal Internal Rules amendment: Article 7.3 of the Internal Rules requires that proposals for modifying the Internal Rules must appear in the agenda of the Congress in their final form. Where the modification of Article 1.28 is characterised as an amendment to the Internal Rules, this process must be followed. On this route, the definitive amendment text to Article 1.28, a suggested draft of which is set out at paragraph 6.5 of this Opinion, must be included in the final Congress agenda and circulated to Member Federations at least one month before the Congress under Article 4.25 of the Statutes.

The amendment passes by simple majority under Article 7.1 and takes effect immediately upon the closing of the Congress under Article 7.2. This is the legally cleanest and most certain approach: it removes the ambiguity at competition level and aligns the Internal Rules with the Congress decision.

- (b) Route B - Congress resolution with express prevailing language: Where the AIN position is characterised as a gap in the Internal Rules rather than a conflict with them (as analysed in paragraph 6.2 above), Congress may pass a participation resolution under its general plenary authority without formally amending Article 1.28. To eliminate the practical ambiguity at competition level that would otherwise result, the resolution must include an express clause addressing the Article 1.28 position. The suggested prevailing clause for inclusion in such a resolution is set out at paragraph 6.6 below. If this route is taken, Congress should direct the Executive Committee to bring forward a formal amendment to Article 1.28, in compliance with Article 7.3 of the Internal Rules, at the next Ordinary Congress, so that the Internal Rules are ultimately aligned with the Congress position. Route B may be appropriate where the definitive Article 1.28 amendment text cannot be finalised in time to satisfy the Article 7.3 pre-circulation requirement, but it carries a residual risk that Technical Delegates and competition officials may face conflicting instruments at event level; the prevailing clause set out at paragraph 6.6 is therefore essential if this route is taken.

6.4. Alternative route via Article 6.4.1: The Comex may consider making an urgent amendment to Article 1.28 under Article 6.4.1 of the Statutes, which gives the Comex authority to make urgent amendments to the Internal Rules with immediate effect, subject to ratification by Congress at the same sitting. The Legal Commission considers that Route A, including the final amendment text on the Congress agenda and passing it by simple majority under Article 7.1 of the Internal Rules simultaneously with the main resolution, is the procedurally cleanest approach and avoids any residual uncertainty arising from the internal tension between Articles 6.4.1 and 4.11.13 of the Statutes.

6.5. Suggested draft amendment to Article 1.28: The following draft wording is put forward for consideration by the Comex and the Legal Commission as the basis for the definitive amendment to Article 1.28 of the Internal Rules to be included on the final Congress agenda in accordance with Article 7.3. This draft should be reviewed and approved in its final form before circulation to Member Federations under Article 4.25 of the Statutes.

PROPOSED AMENDED TEXT OF ARTICLE 1.28 OF THE INTERNAL RULES:

1.28bis. Notwithstanding the foregoing, and subject to prior approval of each individual by the Executive Committee, athletes, coaches or individuals pertaining to the category “licensees” who are members of Member Federations which are suspended members of the EFC or have lost their membership under article 2.13 of the Statutes and have been provisionally re-admitted by COMEX may apply and be granted a license to take part in official EFC Competitions and activities under neutral representation (hereinafter “AIN”). This provision shall also apply to athletes who have been granted AIN status by the FIE pursuant to the FIE’s framework for neutral participation as in force from time to time. For the avoidance of doubt, if athletes of a Member Federation (whether suspended or not) are only permitted to participate in FIE events under AIN status then athletes from such a Member Federation shall only be allowed to participate in official EFC Competitions and activities under neutral representation. The Executive Committee shall determine in the Administrative Rules, from time to time, the specific EFC competitions and age categories in which AIN participation is permitted.

1.28ter. AIN applicants must comply with all other applicable EFC eligibility requirements, including anti-doping, safeguarding and licensing obligations under the EFC Statutes and Internal Rules. The Executive Committee reserves the right to request additional information, declarations, undertakings, statements or evidence prior to granting a AIN license. The Executive Committee may reject a AIN license application by duly justifying its decision in view of preserving legality as well as the principles and values of the EFC.

1.28quater. Individuals who are granted a AIN license will participate in competitions and events of the EFC under the designation AIN, using the EFC flag and the anthem “Ode to the Joy” of the European Union. If the suspension of a member federation is lifted, or where a member federation having lost membership under article 2.13 of the Statutes regains membership, AIN licenses shall be transformed to licenses of the concerned Member Federation.

The effect of this draft amendment is to:

- (i) create a statutory carve-out from the nationality requirement for AIN-status athletes;
- (ii) anchor the conditions of AIN participation to the FIE framework, ensuring ongoing alignment without requiring further Congress resolutions each time the FIE framework is updated; and
- (iii) preserve the Executive Committee's operational flexibility to specify the competitions and categories to which AIN participation applies in the Administrative Rules.

- 6.6. Suggested prevailing clause for Route B (resolution-only): If Congress elects to proceed by way of a participation resolution rather than a formal amendment to Article 1.28 (Route B as described in paragraph 6.3 above), the following prevailing clause should be incorporated into the body of the resolution to address the relationship with Article 1.28:

SUGGESTED PREVAILING CLAUSE:

"For the avoidance of doubt, and to the extent that any provision of the EFC Internal Rules, in particular Article 1.28, may be read as requiring athletes participating in EFC events to represent the nationality of a country, this resolution shall, as a specific and later expression of the will of Congress as the supreme decision-making body of the EFC under Article 4.1 of the Statutes, prevail over any such provision to the extent of any inconsistency. The Executive Committee is directed, pursuant to Article 6.4.1 of the Statutes or at the next Ordinary Congress, to bring forward a formal amendment to Article 1.28 of the Internal Rules to give permanent and unambiguous effect to AIN participation on the terms authorised by this resolution."

The effect of this clause is: (i) to establish express hierarchy as between the resolution and Article 1.28, removing ambiguity for Technical Delegates, referees and officials at competitions; (ii) to

ground the resolution in Congress supremacy under Article 4.1 and the immediate effect of resolutions under Article 4.13; and (iii) to create a documented obligation on the Executive Committee to pursue formal alignment of the Internal Rules, ensuring the resolution-only route does not permanently defer the Article 7.3 process.

The Legal Commission notes that the Executive Committee's power under Article 6.4.1 to make urgent amendments to the Internal Rules with immediate effect (subject to ratification by Congress) provides a further option: the Comex could make an urgent amendment to Article 1.28 under Article 6.4.1 before or during the Congress, with Congress ratifying it at the same sitting. This effectively combines the benefits of both routes, achieving Internal Rules alignment without requiring the Article 7.3 pre-Congress circulation process.

VII. WHETHER THE PROPOSED RESOLUTIONS SHOULD BE TREATED AS TWO INDEPENDENT RESOLUTIONS OR AS A SINGLE COMPOSITE RESOLUTION

7. INDEPENDENT OR A SINGLE COMPOSITE RESOLUTION

7.1. The Proposals as submitted contain two distinct operative provisions:

- (a) Resolution 1: Federation Membership: the lifting of the suspension of RUS and BLR as Member Federations of the EFC and the reinstatement of their membership with immediate effect, subject to financial and ethical compliance; and
- (b) Resolution 2: Athlete and Official Participation: the repeal of the June 2023 prohibition on athletes, coaches, referees, and officials holding Russian or Belarusian citizenship and licences from participating in EFC competitions, and the introduction of participation rights for AIN-status athletes and RUS/BLR athletes in cadet, junior and younger age category events under national identity.

7.2. The Statutes and Internal Rules contain no express provision governing how Congress should vote upon a proposal that contains multiple operative provisions. Under Article 7.4 of the Internal Rules, matters not covered by the Internal Rules fall to be determined by the Comex, and in practice the President as presiding officer of the Congress exercises this residual power. The President may therefore, on the advice of the Comex and the Legal Commission, determine how the voting on the Proposals is structured.

7.3. The Legal Commission advises that the two elements of the Proposals should be divided and voted upon as two separate, independent resolutions for the following reasons:

- (a) Different legal foundations and different Statutory competences: Resolution 1 engages Article 4.11.6 of the Statutes, which grants Congress exclusive competence over the temporary suspension of a Member Federation. As set out in Part IV above, that competence may not be available if RUS has already lost its membership under Article 2.13.3. Resolution 2 engages Congress's general plenary power to repeal or amend its own earlier resolutions on participation restrictions and does not engage Article 4.11.6. The two provisions therefore rest on materially different constitutional foundations, and it would be legally incorrect to treat them as a single indivisible question.
- (b) Materially different legal consequences: Resolution 1, if passed, would restore to RUS and BLR the full rights and privileges of Member Federation status, including voting rights at Congress, the right to send delegates, the ability to nominate candidates for EFC positions, and participation in the governance of the EFC. Resolution 2, if passed, would affect only the participation rights of individual athletes, coaches, referees, and officials at EFC events. These consequences are distinct in nature and degree and should be assessed by Congress independently.

- (c) Logical separability: The two elements can operate independently of each other. The Administrative Rules already permit athletes from non-Member Federations to participate in EFC circuit events without their parent federation holding EFC membership. Conversely, a federation may hold membership without all of its athletes being entitled to participate in all categories of event, as the 2023 Resolutions themselves demonstrate. There is no legal or logical necessity for the two provisions to be adopted or rejected as a package.
- (d) Avoiding a binary outcome: If the Proposals are treated as a single composite resolution, Congress is presented with a binary choice between full reinstatement of federation membership and full restoration of athlete participation rights on the one hand, and the status quo on the other. This forecloses the nuanced and more proportionate outcome in which Congress declines to restore federation membership, pending a proper re-admission process under Articles 2.7 to 2.9 and 4.11.5, while still addressing the regulatory divergence between EFC and FIE participation rules. Dividing the question enables Congress to exercise its judgment on each element separately and on its own merits.
- 7.4. The Legal Commission recommends that the President announce at the commencement of the debate on this item that the Proposals will be divided into two separate questions and voted upon independently by show of hands under Article 2.8 of the Internal Rules, with each question requiring a simple majority under Article 4.8 of the Statutes. The recommended order of voting is as follows:
- (a) First, Resolution 1 (federation membership): given the Legal Commission's analysis in Parts IV and V above, this element is likely either to fail on substantive grounds or to be found procedurally unavailable because the power under Article 4.11.6 may not be applicable to a federation that has already lost its membership under Article 2.13.3. Addressing Resolution 1 first ensures that the outcome of that vote does not distort the subsequent debate on the more tractable athlete participation question; and
- (b) Second, Resolution 2 (athlete and official participation): Congress should be directed, before the vote on Resolution 2, to the necessary consequential amendment to Article 1.28 of the Internal Rules discussed in the preceding Part.
- 7.5. Voting majority and conditions for Resolution 1: The Legal Commission notes that Resolution 1, if Congress were to proceed to vote upon it, would require a simple majority under Article 4.8 of the Statutes. The EFC's governance framework does not impose a qualified majority for re-admission decisions, and a resolution purporting to reinstate RUS or BLR cannot be reclassified as a Statute amendment, which would require the two-thirds majority and quorum prescribed by Article 13.1 merely because its practical effect may be inconsistent with existing Statute provisions. However, Articles 1.17, 1.18 and 1.21 of the Statutes remain operative as hard, self-executing constraints independent of any reinstatement resolution: a re-admitted federation with outstanding debts would not be entitled to vote or attend Congress (Article 1.21), would be required to pay all outstanding fees before competing in EFC Championships (Article 1.18), and would continue to accrue the 20% annual late payment surcharge under Article 1.17 until all arrears are discharged. The Turkish Proposal itself acknowledges that reinstatement is "subject to compliance with the financial and ethical obligations set forth in the EFC Statutes". Any Resolution 1 that purports to grant immediate and unconditional full membership rights, without requiring prior settlement of all outstanding financial obligations, would therefore be internally inconsistent with Articles 1.17, 1.18 and 1.21 and would be immediately challengeable. The Legal Commission accordingly recommends that, if Congress proceeds to vote on Resolution 1, any such resolution should be expressly conditioned on the prior full settlement by RUS and BLR of all membership fee arrears, applicable surcharges and the CAS award before membership rights are restored.

VIII. CONCLUSIONS AND RECOMMENDATIONS TO COMEX

- 8.1. Conclusions: The Legal Commission concludes as follows:

- (a) The Comex has no lawful basis on which to exclude the Proposals from the agenda on procedural grounds;
- (b) The Proposals are framed as a request to "lift a suspension" but are misconceived: Congress may have no power to lift a suspension in respect of RUS and BLR if RUS and BLR have already lost their membership under Article 2.13.3 of the Statutes;
- (c) Outstanding membership fee arrears and the unpaid CAS award each constitute a debt to the EFC within Article 1.21 of the Statutes and Article 2.13.3 of the Statutes. Any resolution reinstating full membership rights while these debts remain outstanding would be inconsistent with Article 1.21;
- (d) The AIN participation element of the Proposals requires a simultaneous amendment to Article 1.28 of the Internal Rules in final form on the Congress agenda. Without that amendment, a direct conflict between the Internal Rules and any resolution would arise; and
- (e) The three identical submissions raise a legitimate concern about coordination which the Comex should investigate prior to the Congress.

8.2. Recommended actions: The Legal Commission recommends that the Comex take the following steps before circulating the final Congress agenda:

- (a) Instruct the Treasurer to prepare a full and quantified schedule of all sums owed to the EFC by RUS and BLR, including:
 - (i) outstanding membership fees;
 - (ii) all applicable 20% surcharges under Article 1.17; and
 - (iii) the full amount outstanding under the CAS award, together with any accrued interest;
- (b) Include in the pre-Congress documentation circulated under Article 4.25 of the Statutes:
 - (i) the Treasurer's debt schedule;
 - (ii) the Comex's assessment of the current legal status of RUS and BLR; and
 - (iii) a clear statement that, in the Comex's view, the correct mechanism for re-admission of a federation that has lost its membership is a fresh application under Articles 2.7-2.9, not a suspension-lifting resolution under Article 4.11.6;
- (c) Prepare and include in the final Congress agenda a proposed amendment to Article 1.28 of the Internal Rules in its definitive final form, to take effect simultaneously with any resolution permitting AIN-status participation at EFC events;
- (d) Investigate the origin and coordination of the three identical submissions and report findings to Congress by way of an Executive Committee commentary on the Proposals under Article 4.25;
- (e) Formally advise Congress, before any vote is taken on the Proposals, that in the Legal Commission's opinion RUS and BLR have already lost their membership by deemed resignation under the then-applicable Luxembourg law, and that the Proposals as framed invoke a power (lifting a suspension under Article 4.11.6) that is not available in respect of federations that are no longer members. If Congress nevertheless proceeds to vote on Resolution 1 in the face of this advice, any resolution purporting to reinstate membership under Article 4.11.6 in respect of a federation that has already ceased to be a member would be legally void as an exercise of a power that does not exist.
- (f) The President, exercising the residual governance authority of the Comex under Article 7.4 of the Internal Rules as the presiding officer of the Congress, may rule Resolution 1 out of order on this basis before the vote is taken. If the President is overruled by a procedural floor motion, the resulting vote would not cure the underlying invalidity: a resolution passed

in excess of Congress's competence under Article 4.11.6 is void ab initio and would be susceptible to challenge by CAS arbitration under Article 11.4 of the Statutes. The Proposing Federations and any individual wishing to challenge the Comex's non-membership determination should be directed to the CAS arbitration mechanism as the appropriate forum.

- (g) Ensure that any counterproposal or alternative resolution prepared by the Comex or by a supporting Member Federation includes an express non-waiver clause confirming that any rights granted to RUS/BLR athletes, coaches or referees do not constitute a waiver of, or prejudice to, the EFC's rights under the CAS award or in respect of outstanding membership fee arrears.

8.3. The Legal Commission remains available to advise further on any of the matters addressed in this Opinion and, in particular, to review the text of any counterproposal or Internal Rules amendment before it is circulated to Member Federations.

Issued by the Legal Commission of the European Fencing Confederation

*Chair, Legal Commission
Etienne Van Cann*

Date: DRAFT

This Opinion is addressed solely to the Comex of the EFC. It is confidential and may not be disclosed to third parties without the prior written consent of the Legal Commission, save as may be required to discharge the EFC's obligations under Luxembourg law or the Statutes.